November 2026 General Municipal Election

CITY ATTORNEY'S IMPARTIAL ANALYSIS OF CITY OF SUNNYVALE MEASURE I

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This measure would amend Sunnyvale City Charter Section 606 to specify that when the City Council appoints a person to fill a vacant seat on the Council, an election to fill the seat will be held at the next General Municipal Election.

The Council placed this measure on the ballot on recommendation of a Charter Review Committee of appointed Sunnyvale residents.

When a seat on the City Council becomes vacant, Charter Section 606 gives the Council two options: either call a special election to fill the vacancy, or fill the vacancy by appointment. This decision must be made by four affirmative votes. If the Council chooses to appoint, the existing Charter provides that the appointee serves until the next General Municipal Election or the next Special Municipal Election consolidated with a statewide election, whichever is sooner.

This measure would remove the requirement to hold a Special Municipal Election on the soonest available date when a seat is filled by appointment. The Council could still choose not to appoint anyone and call a special election instead. This measure would not change the existing Charter provision that prohibits having more than two appointees on the Council at the same time.

Depending on when a vacancy occurs, this measure could have the effect of lengthening the time that an appointee serves on the City Council. For example, if the first opportunity for a Special Municipal Election is the statewide primary in March or June of an even-numbered year, or an earlier statewide special election, the appointee will serve longer under the proposed amendment than under the existing Charter provision. At the same time, this measure avoids a situation where the City must hold a special election to fill a vacancy at the March or June primary followed by a General Municipal Election in November of the same year.

This measure also re-words Section 606, subsection (c), to refer to the City Council votes rather than "councilmembers" since the Council now includes the mayor.

A "YES" vote amends the Charter so that a council vacancy filled by appointment goes to voters at the next November election in an even-numbered year, and makes a clarifying change to the wording of Section 606(c).

A "NO" vote keeps the existing Charter requirement that a council vacancy filled by appointment go to the voters at the next Special Municipal Election consolidated with the next statewide election or the next General Municipal Election, whichever is sooner, and makes no changes to the wording.

This amendment will become effective if a majority of those voting on the measure vote "yes."

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Rebecca L. Moon
City Attorney

To obtain copy of Measure I, call the elections official at 408-730-7483 and a copy will be provided at no cost to you.

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